

Equivalent Citations

citation codes .

Yudhishter v. Ashok Kumar .

Supreme Court Of India (Dec 11, 1986)

CASE NO.

Civil Appeal No. 459 of 1980, decided on December 11, 1986

DISPOSITION

DISMISSED

JUDGES

- Justice Sabyasachi Mukherjee
- Justice K.N. Singh

ATTORNEY

- P.K Banerji and V.C Mahajan, Senior Advocates (Ms Urmila Kapoor and Ms A. Prabhawathy, Advocates, with them), for the Appellant;
- Raja Ram Agarwal, Senior Advocate (B.P Maheshwari, S.N Agarwal and B.S Gupta, Advocates, with them), for the Respondent.

SUMMARY**Factual and Procedural Background**

The appellant-tenant took the suit premises on rent in July 1962. On 11 October 1971 the respondent purchased the premises (Suite No. 292, Ward 13, Gurgaon) from the former landlord. The respondent had earlier bought another house near Kabir Bhavan on 10 July 1971 and sold it on 7 August 1972.

On 14 January 1974 the respondent filed an application for ejectment before the Rent Controller under Section 13 of the Haryana Urban (Control of Rent and Eviction) Act, 1973, citing (a) non-payment of rent, (b) sub-letting and (c) bona fide requirement. The Rent Controller (7 November 1978) rejected the petition, holding that the landlord failed to satisfy Section 13(3)(a)(i) on bona fide requirement.

The respondent appealed. The appellate authority allowed additional evidence under Section 15(4) of the Act and, on 7 December 1979, reversed the Controller's decision,

granting eviction. The tenant's revision under Section 151 CPC was summarily dismissed by the Punjab & Haryana High Court on 10 January 1980. The present appeal to the Supreme Court is by special leave against that summary dismissal.

Legal Issues Presented

1. Whether the appellate authority had jurisdiction to admit and rely on additional evidence at the appellate stage under Section 15(4) of the 1973 Act.
2. Whether, in light of Section 13(3)(a)(i), the respondent–landlord “required” the premises for his own occupation despite:
 - (a) his interest (as son/coparcener or licensee) in an ancestral house already occupied by members of the joint family, and
 - (b) his prior purchase and subsequent sale of another residential building near Kabir Bhavan.
3. Whether the sale of the Kabir Bhavan *property*, allegedly a benami transaction and allegedly with vacant possession, disqualified the respondent from seeking eviction.

Arguments of the Parties

Appellant-Tenant's Arguments

- The appellate authority erred in admitting additional evidence and in failing to consider evidence already on record before the Rent Controller.
- The respondent was in occupation of adequate accommodation in the ancestral house; being a coparcener, he could not be treated as a mere licensee.
- The respondent had earlier purchased a nine-room house near Kabir Bhavan, allegedly obtained vacant possession, and sold it to his sister-in-law in a benami transaction; hence he did not satisfy the statutory condition of not having vacated another residential building without sufficient cause.

Respondent-Landlord's Arguments

- Section 15(4) expressly empowers the appellate authority to admit additional evidence if required for a fair adjudication.
- The ancestral house comprised only two rooms (even including the late grandfather's chamber let out to a bank) and was insufficient for a large joint family of seven brothers and a sister; the respondent's need was therefore bona fide.
- The Kabir Bhavan house was not physically vacant; the recital “kabza khali makan ka dia hai” referred only to the transfer of legal, not actual, possession. Its sale preceded the ejectment application and was not intended to defeat the tenant's rights; no statutory bar prohibits such alienation.

Table of Precedents Cited

Precedent	Rule or Principle Cited For	Application by the Court
State of Kerala v. K.M. Charia Abdullah & Co., AIR 1965 SC 1585	Appellate/ revisional authority may take additional evidence to ensure fair disposal.	Used to uphold the appellate authority's power to admit further evidence under Section 15(4).
Rani Sartaj Kuari v. Rani Deoraj Kuari, (1887-88) 15 I.A. 51	Connection between birthright in ancestral <i>property</i> and right to partition under Mitakshara law.	Cited while examining whether the respondent's interest in the ancestral house amounted to "occupation" of another residential building.
State Bank of India v. Ghamandi Ram, (1969) 2 SCC 33	Nature of coparcenary ownership in a Mitakshara joint family.	Referred to illustrate collective ownership, contrasted with post-1956 statutory changes.
Sundarsanam Maistri v. Narasimhulu Maistri, ILR 25 Mad 149 (1901-02)	Commentary on joint-family <i>property</i> (approved in Ghamandi Ram).	Formed part of the discussion on ancestral <i>property</i> rights.
CWT v. Chander Sen, (1986) 3 SCC 567	<i>Property</i> devolving under Section 8 of the Hindu Succession Act is held individually, not as HUF <i>property</i> .	Supported the view that the ancestral house was father's individual <i>property</i> , making the respondent a mere licensee.
Lachhman Das v. Rent Control and Eviction Officer, AIR 1953 All 458	Recital of delivery of possession may denote legal rather than physical possession; oral evidence admissible.	Relied on to find that the Kabir Bhavan house was never physically vacant for the respondent's use.
State of Karnataka v. Hansa Corporation, (1980) 4 SCC 697	Statutes should be interpreted to avoid unconstitutionality; presumption of fair State action.	Used to justify a reasonable interpretation of Section 13(3) (a) (i) that allows bona fide alienation.

K.P. Varghese v. ITO, (1981) 4 SCC 173	Purposive interpretation to maintain constitutionality.	Further buttressed the above principle.
Kasturi Lal Lakshmi Reddy v. State of J&K, (1980) 4 SCC 1	State action presumed fair; need for reasonable statutory interpretation.	Cited alongside Hansa Corporation and Varghese.

Court's Reasoning and Analysis

1. **Admissibility of Additional Evidence:** Section 15(4) of the Act expressly empowers the appellate authority to conduct “further enquiry.” Relying on *State of Kerala v. K.M. Charia Abdullah*, the Court held that admitting additional evidence caused no prejudice and was justified by issues not clearly pleaded before the Controller.

2. **Ancestral House Issue:** The Court analysed Mitakshara principles in light of the Hindu Succession Act, 1956 and *CWT v. Chander Sen*, concluding that *property* devolving on the respondent’s father was his individual *property*. The respondent was therefore a licensee, not an “occupant” of another house. Even if treated as a coparcener, the available accommodation (two rooms plus the rented chamber) was inadequate for the large family, satisfying the bona fide requirement.

3. **Kabir Bhavan Property :** The recital in the sale deed indicated transfer of legal possession only. Oral and documentary evidence showed the house was never physically vacant; hence the respondent could not have occupied it. The appellate authority’s factual finding on this point was upheld.

4. **Effect of Prior Sale:** The sale occurred 1½ years before the ejectment application. There was no evidence of intent to evade the statute. Reading Section 13(3) (a) (i) to penalise bona fide alienations would risk unconstitutionality; adopting a reasonable interpretation, the Court held the respondent fulfilled all statutory pre-conditions.

5. **Scope of Appellate/ Supreme Court Review:** The High Court rightly refused to interfere in revision; likewise, under Article 136 the Supreme Court saw no ground to disturb concurrent factual conclusions on bona fide need.

Holding and Implications

APPEAL DISMISSED. Interim orders were vacated; parties were left to bear their own costs.

Implications: The judgment affirms that (i) appellate authorities under the Haryana Urban Rent Act may admit additional evidence when justice demands, and (ii) ownership or prior alienation of other *property* does not defeat a landlord’s claim where the *property* was never physically available or where alienation occurred bona fide before litigation. While the decision turns on its specific facts, it clarifies the interpretation of Section 13(3)(a)(i) concerning “occupation” of another residential building and reinforces the post-1956 view that *property* inherited under Section 8 is held individually, not as joint-family *property*.

JUDGMENT

Sabyasachi Mukharji, J.— This appeal by special leave is from the decision of the Punjab & Haryana High Court dated January 10, 1980. The appellant is the tenant. The appeal arises out of the summary dismissal of the revision petition filed by the tenant under **Section 151 of the Code of Civil Procedure** from the decision of the appellate authority under the **Haryana Urban (Control of Rent and Eviction) Act, 1973 being Act 11 of 1973** (hereinafter referred to as “the Act”).

2. The appellant took on rent the premises in question from the previous landlord in or about July 1962. On or about October 11, 1971, the respondent purchased the premises in question being Suite No. 292 of Ward Number 13, District Gurgaon from the previous landlord. The premises hereinafter will be referred as the “premises”.

3. Few months prior thereto that is to say on July 10, 1971, the respondent had purchased another house near Kabir Bhavan, Gurgaon. The appellant's case was that the respondent got vacant possession of the same. The respondent, however, denied that assertion. On August 7, 1972 the respondent sold the said house near Kabir Bhavan. It is asserted that the sale was to one Resham Devi who is alleged to be the sister-in-law of the respondent. On the other hand this is disputed and it appears that she is the sister-in-law of the brother of the respondent. The assertion of the appellant was that this was a benami transaction. On January 14, 1974, an application for ejectment was filed before the Rent Controller by the respondent on grounds of (a) non-payment of rent, (b) sub-letting, and (c) bona fide requirement. So far as the grounds of non-payment of rent and sub-letting are concerned, it has been held by all the courts in favour of the tenant. Those findings are not in dispute in this appeal. The only ground that survives is the bona fide requirement of the landlord. The Rent Controller on November 7, 1978 rejected the petition of the landlord on the ground that the landlord had not been able to prove all the ingredients of **Section 13(3)(a)(i) of the Act**. The respondent thereafter filed an appeal before the appellate authority. Before the authority, an application was made for admission of additional evidence by the respondent landlord. Such additional evidence were permitted to be adduced and were recorded on various dates. The appeal was allowed by the appellate authority on December 7, 1979. The appellant herein filed a revision petition as mentioned hereinbefore before the High Court under **Section 151 of the Code of Civil Procedure**, and the same was dismissed by the High Court in limine on January 10, 1980.

4. The only question that requires consideration in this appeal, is whether on the facts and in the circumstances of the case, the landlord came within the provisions of **Section 13(3)(a)(i) of the Act**. The Act which is an Act to control the increase of rent of certain buildings and rented land situated within the limits of urban areas, and the eviction of tenants therefrom, provides by Section 13(1) that a tenant in possession of a building or a rented land shall not be evicted therefrom except in accordance with the provisions of the said section. Sub-section (3)(a)(i) of Section 13 provides as follows:

“(3) A landlord may apply to the Controller for an order directing the tenant to put the landlord in possession—

(a) in the case of a residential building, if,—

(i) he requires it for his own occupation, is not occupying another residential building in the urban area concerned and has not vacated such building without sufficient cause after the commencement of the 1949 Act in the said urban area.”

5. Before we deal with the other contentions, it may be mentioned that on behalf of the appellant, Shri P.K Banerji learned advocate contended that the appellate authority was in error in firstly admitting additional evidence at the appellate stage in the facts and circumstances of the case, and secondly, the appellate authority had not considered the evidence adduced by the appellant before the Rent Controller. We are unable to accept these submissions urged on behalf of the appellant. The appellate authority, it must be mentioned, has normally the same jurisdiction to admit additional evidence as the trial court if the facts and circumstances so warrant.

6. Furthermore, in the instant case **Section 15 of the Act** deals with the powers of the appellate and revisional authorities under the Act. Sub-section (4) of the said section specifically provides that if necessary, after further enquiry as it thinks fit either personally or through the Controller, the appellate authority shall decide the appeal. Therefore, the appellate authority has by express provision jurisdiction to admit additional evidence. Indeed in this case from the written statement, it appears that the only contention that was sought to be raised was about the extent of the accommodation available to the landlord in the ancestral house of the landlord. The allegation about the alleged sale of the premises near Kabir Bhavan was not clearly spelled out. Therefore, if the interest of justice so demanded, the appellate authority was justified in admitting the additional evidence. The parties in this case had ample opportunity to test the veracity and to examine and submit on the value of such additional evidence. No prejudice could be said to have been caused by admission of such additional evidence. In *State of Kerala v. K.M Charia Abdullah & Co.* AIR 1965 SC 1585, [\(1965\) 1 SCR 601](#), (1965) 16 STC 875 this Court was dealing with similar power under Madras General Sales Tax Act, 1939 and observed at p. 610 of the report that by sub-section (4) of **Section 250 of the Income Tax Act, 1961** which is similar to **Section 33(4) of the Indian Income Tax Act, 1922**, the Commissioner was authorised for disposing of the appeal to make such further enquiry or to direct the Income Tax Officer to make further enquiry as he thought fit and report upon them. This Court held that it could not be denied that the said sub-section conferred upon the appellate or revising authority power to make such enquiry as it thought fit for fair disposal of the appeal. We are, therefore, clearly of the opinion that in the facts and circumstances of a particular case, the appellate authority has jurisdiction under the Act in question to admit additional evidence. We are further of the opinion that in this case admission of such additional evidence was warranted by the facts and the pleadings in this case. We are satisfied that by such admission of evidence, no prejudice has been caused to the appellant.

Indeed reading of the order of the appellate authority makes it abundantly clear that the appellate authority had adverted to all the facts recorded by the Rent Controller and further considered the additional evidence. It is true that in referring to the findings of the Rent Controller, the appellate authority in its order had not specifically referred to the paragraphs of the order of the Rent Controller but that does not mean nor does it indicate that the appellate authority had not considered evidence adduced before the Rent Controller. We are, therefore, unable to sustain the objections urged on behalf of the appellant by Shri Banerji, on admission and consideration of the additional evidence.

7. The appellate authority noted that the party had led evidence before the Rent Controller and after hearing the party, the Rent Controller held in the manner he did. The appellate authority therefore was conscious of the evidence adduced by the appellant before the Rent Controller. The criticism that there was no consideration of the evidence adduced by the appellant before the Rent Controller by the appellate authority is, therefore, not justified in the facts and circumstances of the case. The Rent Controller as noted hereinbefore held that the appellant had proved the bona fide requirement. The appellate authority had noted the evidence adduced by the respondent before the appellate authority. It is clear that the residential house of the family of the petitioner was having two rooms only and there was large number of persons occupying the two rooms. The family of the petitioner consisted of really seven brothers and one sister. Admittedly two brothers and their families were occupying the said premises. The premises in question belonged to the grandfather of the respondent. The grandfather was an advocate. He died. After his death his chamber was let out to Laxmi Commercial Bank. It was contended that the respondent was coparcener in the said joint family house. It was submitted that if the said chamber which was a big room was available, then, it could not be said that there was dearth of the accommodation in the ancestral house. It is true that the appellate authority had proceeded on the basis that the two rooms for occupation were available in the said house for the father and the two sons including the respondent and his family in the ancestral house. But assuming that even if we take into consideration the chamber of the late grandfather which had been let out to Laxmi Commercial Bank, that will also be wholly insufficient to meet the reasonable and bona fide requirement of the respondent. The appellate authority further held that the appellant was a licensee in respect of the ancestral house and he was staying there with the permission or the licence given by his father and he had no right and as such his interest in the ancestral house could not be considered to be “occupying another residential house” in terms of clause (1) of sub-section 3(a) of Section 13 of the Act. It was submitted before us that this is incorrect because a coparcener in respect of the ancestral house was a co-owner and an owner could not be considered to be a licensee of the father in respect of a house belonging to Mitakshara joint family. There is no dispute that the family in question is governed by the Mitakshara school of Hindu law.

8. It is abundantly clear that Ashok, Isher and Jagadish being the brothers of the appellant and the family belonging to the joint family of the respondent with their children were staying in the ancestral house. Lalit, another brother, had another house. As mentioned hereinbefore there were other persons but about their stay there was no clear evidence. It is

asserted by the respondent that they are seven brothers and one sister. But even assuming that Ashok, Isher and Jagadish and the children stay in the ancestral house and assuming that the big room which had been let out to Laxmi Commercial Bank is taken into consideration, the accommodation is still very inadequate for reasonable and bona fide requirement of the landlords. The question, therefore, whether the respondent was a licensee of his father or a co-owner of the *property*, namely the ancestral house is not really necessary to be decided. But it was contended on behalf of the appellant that this approach of the appellate authority had vitiated the conclusion. It is therefore necessary to allay the grievance of the appellant on this score.

9. Our attention was drawn to a decision of the Judicial Committee in *Rani Sartaj Kuari v. Rani Deoraj Kuari* (1887-88) 15 IA 51. That case was in respect of an impartible estate governed by the Mitakshara school of Hindu law. There was a custom that the estate was impartible and was descendible to a single heir by the rule of primogeniture. It was held that in order to render alienations by the rajah in that case invalid as made without the consent of his son it must be shown that the Rajah's power of alienation was excluded by the custom or by the nature of the tenure. In such a Raj the son is not a co-sharer with his father. The Judicial Committee further observed that *property* in ancestral estate acquired by birth under the Mitakshara law is so connected with the right to partition that it does not exist independently of such right. At p. 64 of the Report, the Judicial Committee observed that the *property* in the paternal or ancestral estate acquired by birth under the Mitakshara law is, in the opinion of the Judicial Committee, so connected with the right to partition, that it did not exist where there was no right to it. We are of the opinion that no much support can be sought for by the appellant from the said decision. Here in the instant case, the question is whether the respondent who undoubtedly was governed by the Mitakshara school of law, had acquired a right to ancestral *property* by his birth. But this question has to be judged in the light of the Hindu Succession Act, 1956. Reliance was also placed on *State Bank of India v. Ghamandi Ram* [\(1969\) 2 SCC 33](#), AIR 1969 SC 1330, (1969) 3 SCR 681. At p. 686 of the Report, this Court observed that according to the Mitakshara school of Hindu law all the *property* of a Hindu joint family was held in collective ownership by all the coparceners in a quasi-corporate capacity. The court approved the observations of Mr Justice Bhashyam Ayyangar in *Sundarsanam Maistri v. Narasimhulu Maistri* (1901-2) ILR 25 Mad 149. But the question in the instant case is the position of the respondent after coming into operation of the Hindu Succession Act, 1956. Shri Banerji drew our attention to Mulla's Hindu Law 15th, Edn. at p. 924 where the learned commentator had discussed effect in respect of the devolution of interest in Mitakshara coparcenary *property* of the coming into operation of the Hindu Succession Act, 1956.

10. This question has been considered by this Court in *CWT v. Chander Sen* [\(1986\) 3 SCC 567](#) where one of us (Sabyasachi Mukharji, J.) observed that under the Hindu law, the moment a son is born, he gets a share in father's *property* and becomes part of the coparcenary. His right accrues to him not on the death of the father or inheritance from the father but with the very fact of his birth. Normally, therefore whenever the father gets a *property* from whatever source, from the grandfather or from any other source, be it

separated *property* or not, his son should have a share in that and it will become part of the joint Hindu family of his son and grandson and other members who form joint Hindu family with him. This Court observed that this position has been affected by **Section 8 of the Hindu Succession Act, 1956** and, therefore, after the Act, when the son inherited the *property* in the situation contemplated by Section 8, he does not take it as karta of his own undivided family but takes it in his individual capacity. At p. 577 to 578 of the Report, this Court dealt with the effect of **Section 6 of the Hindu Succession Act, 1956** and the commentary made by Mulla, 15th Edn., pp. 924-26 as well as Mayne's Hindu Law, 12th Edn. pp. 918-19. Shri Banerji relied on the said observations of Mayne on Hindu Law, 12th Edn., at p. 918-19. This Court observed in the aforesaid decision that the views expressed by the Allahabad High Court, the Madras High Court, the Madhya Pradesh High Court and the Andhra Pradesh High Court appeared to be correct and unable to accept the views of the Gujarat High Court. To the similar effect is the observation of learned author of Mayne's Hindu Law, 12th Edn., p. 919. In that view of the matter, it would be difficult to hold that *property* which devolved on a Hindu under **Section 8 of the Hindu Succession Act, 1956** would be HUF in his hand vis-à-vis his own sons. If that be the position then the *property* which devolved upon the father of the respondent in the instant case on the demise of his grandfather could not be said to be HUF *property*. If that is so, then the appellate authority was right in holding that the respondent was a licensee of his father in respect of the ancestral house.

11. But as mentioned hereinbefore, even if we proceed on the assumption that the respondent was a member of the HUF which owned the ancestral house, having regard to his share in the *property* and having regard to the need of other sons of the father who were living in the ancestral house along with their families, the appellate authority was still right in holding that the need of the respondent was bona fide.

12. The second aspect of the matter which was canvassed before us was that the respondent had purchased another house near Kabir Bhavan in 1971 and there were nine rooms in the said house. It was the appellant's contention that it was sold to Smt Resham Devi which was a benami transaction. It was further his contention that in respect of the said house the respondent had got vacant possession. Thirdly, it was contended that the respondent had within his choice to keep the said premises but he sold the said premises in question. Therefore he does not come within the conditions stipulated in **Section 13(3)(a) (i) of the Act**. The appellate authority on appraisal of evidence before the Rent Controller as well as before it came to the conclusion that vacant possession had not been obtained. There was evidence on record to come to that conclusion.

13. Our attention was drawn to the document on behalf of the appellant in support of contention that the document which was registered document recited that vacant possession has been given. The document stated “kabza khali makan ka dia hai”. It was asserted that it meant that vacant possession in fact had been given. The oral evidence adduced indicated otherwise. Indeed the expression aforesaid does not mean that actual physical vacant possession had been handed over to the purchaser. In document of this type it can equally mean that the legal right of possession not the actual possession had

been handed over to the purchaser. Therefore, evidence was permissible to explain what it meant. Reliance for this purpose was placed on a decision of the Division Bench of the Allahabad High Court in *Lachhman Das v. Rent Control and Eviction Officer* [AIR 1953 All 458](#), 1953 All LJ 151. Therefore in the instant case even if the legal right of occupation had passed on which, in our opinion, was sought to be conveyed by the expression noted hereinbefore, then whether the premises in question was actually vacant to be occupied by the respondent is a question on which the oral evidence could be adduced. There was ample justification on the evidence on record to come to the conclusion that it was “not physically vacant”. The expression noted above therefore on this aspect is really non sequitur and evidence would clinch the issue. There was the evidence for the appellate authority to come to the conclusion that the house near Kabir Bhavan was not vacant. It acted on the same and in our opinion it did not commit any error in so doing.

14. The next aspect urged was that it was benami transaction because the father of the respondent has gone to the registration office. In view of the evidence discussed by the appellate authority, specially the income tax records and other records to which it is not necessary to advert in detail as well as the oral testimony in this case, the appellate authority rejected the contention that the sale was a benami transaction by the respondent. The most important aspect, however, as was highlighted by the respondent was that the said *property* was purchased in July 1971 and sold in August 1972 because it was not in vacant possession.

15. In the instant case suit for eviction in question for the need of the landlord was filed in January 1972. Therefore, the respondent could not be said in view of the said premises having been purchased and sold by him prior to the institution of the suit, to have occupied another residential building in the urban area. It was contended that by sale the respondent has disentitled himself to the relief asked for because he had in his choice the residential building for his occupation but he sold it. We are unable to accept this contention. There is no evidence either before the Rent Controller or before the appellate authority that this sale to Resham Devi was with an intention or with a purpose to defeat the claim of the appellant or to take out the respondent from the purview of the limitation imposed by clause (1)(a) of sub-section (3) of Section 13 of the Act. If we read in such manner the Act in question, the Act would expose itself to the vice of unconstitutionality. It is well settled that though the Rent Act is a beneficial legislation, it must be read reasonably and justly. If more limitations are imposed upon the right to hold the *property* then it would expose itself to the vice of unconstitutionality. Such an approach in interpretation of beneficial statutes is not warranted. It is true that one should iron out the creases and should take a creative approach as to what was intended by a particular provision but there is always, unless rebutted, a presumption as to constitutionality and the Act should be so read as to prevent it from being exposed to the vice of unconstitutionality. State is also presumed to act fairly. See in this connection the observations in *State of Karnataka v. Hansa Corpn.* [\(1980\) 4 SCC 697](#) and *K.P Varghese v. ITO* [\(1981\) 4 SCC 173](#). See also the observations of this Court in *Kasturi Lal Lakshmi Reddy v. State of J&K.* [\(1980\) 4 SCC 1](#), AIR 1980 SC 1992, (1980) 3 SCR 1338

16. In fact the respondent did not have a house in his possession. He did purchase one before, but as it was not vacant, he sold away before the institution of the suit. There was no restriction by the Act on sale and alienation of *property* . At the relevant time the respondent fulfilled all the requirements to maintain an action for eviction. Shri Raja Ram Agarwala, counsel for the respondent, submitted before us that we should take a creative, reasonable and rational approach in interpreting the statute. We should not, he submitted, put such an interpretation as would prevent sale or mortgage of the *property* by the owner and in this case he was justified in saying that the landlord respondent did not have vacant possession. As the facts of this case warrant and in fact the respondent had sold away the *property* 1 1/2 years before his suit for his need was instituted, it cannot be said unless there was definite evidence that it was done with the intention to defeat the appellant's claim so as to be read that the landlord occupied another residential house at the relevant time i.e at the time of institution of the suit. The appellate authority accepted the respondent's need and found him within the purview of the Act. The High Court did not interfere in revision, nor shall we under **Article 136 of the Constitution**.

17. The appeal, therefore, fails and is accordingly dismissed. Interim orders are vacated. In the facts and circumstances of the case, however, the parties will pay and bear their own costs.